3827 Schuylkill Rd
Spring City, PA 19475
484-467-9551

10/20/2026

St. Ann Roman Catholic Church Parish
502 S Main Street
Phoenixville, PA 19460

RE: Snow Removal at St. Ann Catholic Church, Holy Family School, Office, Rectory, St. Ann Chapel, St Ann Cemetery and Sacred Heart Cemetery

To Whom It May Concern:

Jastrem Premium Landscapes proposes to perform expert snow services at **St. Ann Catholic Church Parish**
This contract is an agreement between **JASTREM PREMIUM LANDSCAPES, LLC**, hereinafter referred to as the contractor and **St. Ann Catholic Church Parish** and hereinafter referred to as the client. This Contract is in effect for (6) months starting **November 1, 2026 and ending April 15, 2027** Term maybe extended for additional 2 years beyond base year upon agreement. Contractor and client hereby promise and agree to the following: The contractor agrees to provide the services detailed in the following specifications. The client agrees to pay the charges specified herein.

Exhibit A(i): Price Per Season Main Campus

Accumulation	Price
Less than 12”	$36,000.00
Seasonal 12” – 24”	$40,000.00
Additional 12” Increments Above Ceiling	$8,000.00

Exhibit A(il): Price Per Season Cemeteries

Accumulation	Price
Less than 12”	$9,000.00
Seasonal 12” – 24”	$10,000.00
Additional 12” Increments Above Ceiling	$2,000.00

Definitions:

Less than 12” – in winters where the snow total is less than or equal to 12”, owner will receive a 10% credit off the seasonal price. This credit will come in the form of credit on the final installment.

Seasonal 12” –24 ” – Standard contracted season. Monthly payments are based on this number at a factor of 1/5 the season total due the first of each month.

Additional 12” Increments – Winters resulting in snow totals exceeding 24 inches will be billed according to the values specified in the table above, in increments of 12 inches (e.g., additional fee at 24.1 inches, additional fee at 36 inches, additional fee at 48 inches, etc.). These incremental fees will be billed immediately when seasonal snow totals, as exclusively provided by weather works or True Weather for the location, surpass the defined incremental thresholds.

Payment Schedule Main Campus (Based on 12” – 24” Price For Season 1 of Agreement)

Payment Due	Price
November 1	$8,000.00
December 1	$8,000.00
January 1	$8,000.00
February1	$8,000.00
March 1	$8,000.00

Payment Schedule Cemeteries (Based on 12” – 24” Price For Season 1 of Agreement)

Payment Due	Price
November 1	$2,000.00
December 1	$2,000.00
January 1	$2,000.00
February1	$2,000.00
March 1	$2,000.00

Exhibit A Notes:

1. Contractor is authorized to perform all plowing and ice melt services under this agreement unless services are refused by owner. Refusal of any services requires communication to contractor in writing 4 hours prior to the beginning of any winter event.
2. Contractor, in its sole discretion, will choose what equipment will be used to complete services.
3. Snow hauling/ moving or stacking of snow is considered and extra and will be billed at T&M Rates and will be due immediately following completion of services

T&M Rates For stacking and or moving snow or special events outside of normal operations

Snow Pricing
Snow plow with operator: 135.00/hr. per truck
Front end loader with operator: $250/hr. per loader
Skid Steer with operator: $135.00/hr. per skid steer
Shoveling $75/hr./ man.
Snowrator $140/hr

Snow hauling
Tri axl $300 per hour
Loader $250 per hour
2 hr min port to port

Ice removal
Hand spreading of ice melt $75/hr. per man
Salt $275.00/ton applied
Calcium Chloride $45.00/ 50lb bag
1 Hr Minimum Charge for service Port to Port

SNOW REMOVAL

PARKING LOTS AND DRIVES

Snow removal shall commence immediately upon accumulation of 2" of Snow automatically without necessary notification. Attention will be paid to all loading docks, dumpsters, fire hydrants and walkways to keep clear at all times. Contractor will make every reasonable effort to have lots ready for business at 7 am. During some storm events, duration of precipitation or late ending of event may cause delay in completion. All snow will be pushed to open areas and to minimize runoff where applicable. Contractor will have discretion in what services and methods used for removal to maintain safety of staff, and public client shall notify contractor of necessity to service property by contacting main office during surprise events or conditions. Client shall allow reasonable response time for contractor to commence operations and to

mobilize during such events. When applicable, depth of snow shall be determined by the National Weather Service and other reputable certified organizations such as weather works or TRUWeather. Locations closest to site will be used to interpolate depth of snow accumulation at site when necessary.

SIDEWALKS
Snow removal shall commence immediately upon accumulation of 2” of Snow automatically without necessary notification. Attention will be paid to all loading docks, walkways, steps and exits to keep clear at all times. Contractor will make every reasonable effort to have walks ready for business at 7 am. During some storm events, duration of precipitation or late ending of event may cause delay in completion. All snow will be shoveled to open areas adjacent to sidewalks and to minimize runoff where applicable. Contractor will have discretion in what services and methods used for removal to maintain safety of faculty, staff, and students, including but not limited to use of shovels, snow blowers, brooms, and leaf blowers, and snowrators. Contractor will monitor weather but client shall notify contractor of necessity to service property by contacting main office during surprise events or unknowable conditions. Client shall allow reasonable response time for contractor to commence operations and to mobilize during such events. When applicable, depth of snow shall be determined by the National Weather Service and other reputable certified organizations. Locations closest to site will be used to interpolate depth of snow accumulation at site when necessary.

ICE MELT, SALT
When icy conditions exist or are certain to potentially exist in the next 24 hours Contractor shall apply necessary material to reasonably prevent icy and slippery conditions. The goal of the contractor is to make roads, walks, drives, parking lots, and loading docks passable. Owner acknowledges that it is impossible to achieve complete elimination of slippery conditions, further contractor shall be held harmless for slip and fall. Salt shall be applied to all roadways and parking lots. Calcium Chloride or other suitable mixes shall be applied to concrete surfaces of sidewalks, loading docks, and stairs. Contractor maintains right to judge necessary treatments to maintain safety, including but not limited to pretreating surfaces, treating surfaces during event, and treating refreeze. Client shall allow contractor to pre-stage materials on site. Salt shall be spread via mechanical spreader. Sidewalks shall be spread via manual devices.

SNOW & ICE MANAGEMENT GENERAL CONDITIONS

1. PROPOSAL AND PRICING

All prices contained in this proposal remain valid for thirty (30) days from the proposal date unless otherwise stated. Snow and ice management pricing is based upon the conditions, assumptions, service areas, access, and scope of work described in the proposal. Any change in site conditions, service requirements, governmental requirements, or scope may result in additional charges.

2. TERM AND TERMINATION

Either Contractor or Client may terminate this Agreement upon thirty (30) days' written notice unless otherwise provided in the proposal or contract.

If either party believes the other party is in default, written notice shall be provided describing the alleged default and, where reasonably possible, the party alleged to be in default shall be provided a reasonable opportunity to cure the default.

Nothing in this provision shall prevent Contractor from immediately suspending or terminating services when continued service would create an unsafe condition, when Client has failed to make required payments, when Client has materially interfered with Contractor's ability to perform, or when Contractor reasonably determines that continued performance presents an unreasonable risk to Contractor, its employees, subcontractors, or equipment.

Upon termination, all services performed and materials supplied through the effective date of termination shall become immediately due and payable.

3. PAYMENT TERMS AND LATE CHARGES

Payments for services provided by Contractor are due in accordance with the payment terms stated in the proposal or invoice.

Unless otherwise stated, invoices are due within Fifteen (15) days of the invoice date.

Balances remaining unpaid more than thirty (30) days after the invoice date may be subject to a finance charge of one and one-half percent (1.5%) per month, or the maximum amount permitted by applicable law, whichever is less.

If Contractor is required to retain an attorney, collection agency, or other third party to collect amounts due under this Agreement, Client agrees to pay all reasonable costs of collection, including reasonable attorneys' fees, to the extent permitted by applicable law.

Contractor reserves the right to suspend services upon written notice for delinquent accounts. Suspension of service for nonpayment shall not constitute a breach or default by Contractor.

4. WEATHER CONDITIONS AND SERVICE AUTHORITY

Snow and ice management operations are inherently dependent upon weather conditions, pavement temperatures, precipitation type, storm intensity, wind, visibility, traffic, and other conditions beyond Contractor's control.

Contractor shall have reasonable discretion to determine when operations should commence, continue, repeat, or conclude based upon actual and forecasted weather and site conditions.

Contractor's decision regarding the timing, frequency, method, and sequencing of snow and ice management operations shall be based upon Contractor's professional judgment and the scope of services purchased by Client.

Unless expressly stated otherwise in writing, Contractor does not guarantee that snow or ice will be completely removed, that pavement will remain completely bare, or that a property will remain free of snow or ice throughout or immediately following a storm.

5. SNOWFALL ACCUMULATION AND MEASUREMENT

Snowfall accumulation may vary substantially across a property due to wind, drifting, pavement temperature, elevation, buildings, landscaping, traffic, and other conditions.

Snowfall measurements shall be based upon reasonable measurements taken at representative locations and/or information reasonably available to Contractor from Certified Weather

Companies such as Weather works, Tru Weather, National Weather Service or similarly accredited organizations.

Snow drifting, windrows, blowing snow, sleet, freezing rain, and localized accumulation may require service even when accumulation at another portion of the property is below the stated service trigger.

Unless otherwise specified in the proposal, Contractor shall use reasonable professional judgment in determining whether conditions warrant service.

6. CONTINUOUS STORMS AND MULTIPLE SERVICE VISITS

Unless expressly stated otherwise, a snow event may require multiple service visits.

Contractor may perform repeated plowing, shoveling, blowing, salting, deicing, or other services during an ongoing storm when reasonably necessary to maintain access and safety.

Each service visit or application shall be considered part of the contracted snow event and shall be billed in accordance with the pricing structure contained in the proposal.

A storm shall not be considered completed merely because precipitation temporarily stops if additional precipitation or hazardous conditions are reasonably expected.

7. ICE, FREEZING RAIN, SLEET AND REFREEZE

Client acknowledges that snow removal and deicing services cannot guarantee the elimination of all ice or slippery conditions.

Freezing rain, sleet, black ice, packed snow, melting snow, refreezing, rapidly falling temperatures, shaded areas, bridge/deck surfaces, drainage areas, and other conditions may create hazardous surfaces before, during, or after Contractor's service.

Contractor shall not be responsible for hazardous conditions that develop or recur after Contractor has completed service, including conditions resulting from melting and refreezing, subsequent precipitation, falling temperatures, or other weather conditions.

Contractor may recommend or perform additional applications of salt or deicing material when reasonably necessary. Such applications shall be billed as provided in the proposal or, if not specifically priced, as additional services.

8. DEICING MATERIALS AND LIMITATIONS

Salt, calcium chloride, magnesium chloride, treated salt, brine, or other deicing materials shall be applied at rates reasonably determined by Contractor based upon weather, pavement temperature, precipitation, site conditions, and the material being used.

Client acknowledges that deicing materials have limitations and may not be effective under all temperatures or weather conditions.

Deicing materials may be ineffective or substantially less effective during extremely low pavement temperatures, heavy precipitation, freezing rain, rapid refreeze, or when snow and ice are bonded to pavement.

Contractor does not warrant that the application of deicing materials will eliminate all snow or ice or prevent all slip-and-fall conditions.

9. DEICING MATERIAL AVAILABILITY, MATERIAL SHORTAGES AND ALTERNATIVE MATERIALS

During excessively snowy, icy, or unusually cold winters, the availability of salt, calcium chloride, magnesium chloride, treated salt, brine, and other deicing materials may become limited due to market shortages, supplier allocations, transportation interruptions, governmental restrictions, governmental impoundments or controls, emergency declarations, increased demand, or other circumstances beyond Contractor's reasonable control.

Contractor shall make every commercially reasonable efforts to procure the deicing materials specified in the proposal. However, Contractor does not guarantee the availability of any particular deicing material throughout the winter season.

If the specified deicing material becomes unavailable or its cost materially increases due to circumstances beyond Contractor's reasonable control, Contractor shall notify Client when reasonably practicable and may procure materials from alternative suppliers or sources. Any increase in the price charged to Client for such materials shall be limited to the Contractor's actual additional cost of obtaining the substitute or alternative material, together with any directly related additional transportation or delivery costs if applicable.

When specified deicing materials are unavailable, Contractor may, in its reasonable professional judgment, use an alternative deicing material, treated product, melting agent, abrasive, traction material, or combination of materials reasonably intended to address the prevailing conditions.

Client acknowledges that alternative materials may perform differently from the materials originally specified and may require different application rates, repeated applications, or additional cleanup.

Where traction materials, abrasives, alternative melting materials, or other substitute products are used due to material availability, weather conditions, or other circumstances beyond Contractor's reasonable control, Contractor shall not be responsible for reasonable and customary cleanup costs, tracking, residue, staining, or removal associated with the inherent characteristics or use of such materials, except to the extent caused by Contractor's negligence or willful misconduct.

Contractor shall not be liable for the unavailability, shortage, allocation, restriction, governmental control, or increased cost of deicing materials when such circumstances are beyond Contractor's reasonable control. Contractor's inability to obtain a particular deicing material shall not constitute a breach or default of this Agreement where Contractor has made commercially reasonable efforts to obtain the material or a reasonable alternative.

Client acknowledges that during widespread winter weather events, the availability and cost of deicing materials may change rapidly and that Contractor's ability to obtain materials may be affected by conditions throughout the regional or national supply chain.

Nothing in this section shall require Contractor to purchase materials at commercially unreasonable prices or expose Contractor to an obligation to obtain materials that are unavailable through reasonable commercial efforts.

10. ZERO-TOLERANCE SERVICE

Unless expressly stated otherwise in the proposal, snow and ice management services are intended to provide reasonable access and safety consistent with prevailing weather conditions and the purchased scope of work.

If Client requests or contracts for "zero tolerance," "bare pavement," or substantially similar service, such terminology shall mean that Contractor will make commercially reasonable efforts to achieve such conditions. It shall not constitute a guarantee that all snow or ice will be completely eliminated, particularly during active precipitation, freezing rain, extreme temperatures, refreeze conditions, or other circumstances beyond Contractor's control.

11. SIDEWALKS, WALKWAYS AND PEDESTRIAN AREAS

Sidewalks, walkways, entrances, stairs, loading areas, and other pedestrian surfaces shall be serviced only to the extent specifically included in the proposal.

Where snow removal is included, Contractor shall make commercially reasonable efforts to clear such areas in accordance with the contracted service schedule.

Contractor is not responsible for areas that cannot reasonably be accessed because of parked vehicles, merchandise, equipment, gates, barricades, construction activity, landscaping, stored materials, or other obstructions.

12. PARKED VEHICLES AND OBSTRUCTIONS

Client shall make reasonable efforts to keep parking areas, drive lanes, loading zones, sidewalks, entrances, and other service areas free of vehicles, trailers, dumpsters, equipment, merchandise, debris, and other obstructions.

Contractor shall not be responsible for failure to service or fully clear areas obstructed by vehicles or other objects.

Contractor shall not be responsible for damage to vehicles or property resulting from snow or ice that cannot reasonably be removed because of obstructions.

Contractor reserves the right to plow around vehicles and other obstructions rather than risk damage to property.

13. SNOW STORAGE AND RELOCATION

Snow shall be placed in locations designated by Client or reasonably selected by Contractor based upon available site conditions and the contracted scope.

Snow relocation, stacking, hauling, loading, removal from the property, or transportation of snow off-site is not included unless expressly stated in the proposal.

If available snow-storage areas become inadequate, Contractor may recommend additional snow relocation or hauling services. Such services shall constitute additional work and shall be billed separately.

Client acknowledges that snow piles may obstruct visibility, occupy parking spaces, damage landscaping, interfere with drainage, and create other temporary conditions.

14. OFF-SITE SNOW HAULING

Off-site hauling of snow is excluded unless specifically included in the proposal.

When hauling is requested or becomes necessary, Contractor shall be entitled to charge additional fees for loaders, operators, trucks, fuel, disposal fees, travel time, labor, and other associated costs.

Contractor does not guarantee the availability of off-site snow storage or disposal locations during periods of widespread snowfall.

15. ACCESS TO PROPERTY

Client shall provide Contractor with reasonable and unobstructed access to all areas requiring service.

Client shall provide Contractor with keys, access codes, gate access, or other necessary means of access where applicable.

Contractor shall not be responsible for delays or failure to service areas that are inaccessible due to locked gates, parked vehicles, security restrictions, construction, fallen trees, utility failures, flooding, emergency activity, or other conditions beyond Contractor's reasonable control.

16. EXISTING CONDITIONS AND HIDDEN HAZARDS

Client shall notify Contractor of all known hazards, unusual site conditions, underground or concealed structures, drainage issues, damaged pavement, defective curbs, speed bumps, raised utility structures, irrigation components, landscape lighting, drainage grates, manholes, wheel stops, parking blocks, and other conditions that may affect snow and ice operations.

Contractor shall exercise reasonable care in performing services but shall not be responsible for damage caused by concealed, unmarked, undocumented, or otherwise unknown conditions.

17. DAMAGE TO PAVEMENT, CURBS AND SITE FEATURES

Snow and ice management equipment operates on pavement and other surfaces that may be concealed by snow or ice.

Contractor shall not be responsible for damage to deteriorated, cracked, weakened, raised, sunken, improperly installed, concealed, or otherwise defective pavement, curbs, drainage

structures, utility covers, wheel stops, landscaping, irrigation components, or other property features.

Contractor shall exercise reasonable care in the operation of its equipment. Contractor will make good faith efforts to repair damage occurring during snow removal operations when prudent timing allows. Normal wear and tear to pavement is to be expected during scraping and deicing activities. This includes surface scratching to sealants of pavement. Contractor will not be held liable for normal wear and tear from snow activities.

18. LANDSCAPING AND VEGETATION

Snow may be placed adjacent to or upon landscaped areas where reasonably necessary to perform the contracted services.

Contractor shall exercise reasonable care but shall not be responsible for damage to plants, shrubs, trees, turf, landscape beds, irrigation systems, lighting, or other landscape features caused by snow accumulation, snow storage, salt, deicing materials, plowing, shoveling, windrows, drifting, or conditions beyond Contractor's reasonable control. Contractor will make every reasonable effort to avoid such occurrences but will not be responsible for excess snow accumulation of multiple events.

19. WEATHER DELAYS AND EXTRAORDINARY STORMS

During unusually severe storms, blizzards, extreme snowfall, extreme freezing rain events, ice storms, high winds, widespread power outages, road closures, emergency declarations, equipment shortages, or other extraordinary events, service times may be delayed.

Contractor shall make commercially reasonable efforts to provide service but does not guarantee a specific completion time unless expressly agreed to in writing.

Contractor shall prioritize operations based upon safety, accessibility, available equipment, storm severity, and operational conditions.

20. FORCE MAJEURE

Contractor shall not be considered in default or breach of this Agreement for delays or failures caused by circumstances beyond Contractor's reasonable control, including but not limited to severe weather, excessive snowfall, blizzards, extreme ice storms, freezing rain, extreme cold, high winds, flooding, fallen trees, utility failures, road closures, governmental restrictions, accidents, fuel shortages, material shortages, labor shortages, acts of God, or other extraordinary circumstances.

Contractor shall not be considered in default or breach of this Agreement, nor shall Contractor be liable for any delay, interruption, reduction, inability, or failure to perform any services, when such delay, interruption, reduction, inability, or failure is caused in whole or in part by circumstances beyond Contractor's reasonable control.

Such circumstances shall include, without limitation, severe or extraordinary weather conditions, excessive snowfall, blizzards, ice storms, freezing rain, sleet, extreme cold, extreme or rapidly changing pavement temperatures, high winds, flooding, fallen trees, road closures, traffic restrictions, governmental restrictions, governmental orders, emergency declarations, acts of

God, fire, accident, equipment failure despite reasonable maintenance, fuel shortages, labor shortages, strikes, supplier failures, material shortages, supply-chain disruptions, transportation delays, trucking shortages, warehouse limitations, supplier allocations, market-wide shortages, governmental allocation, restriction, impoundment, or control of salt or other deicing materials.

In the event of a shortage or unavailability of salt, deicing materials, traction materials, fuel, equipment, or other necessary materials or resources, Contractor shall make commercially reasonable efforts to obtain the specified materials or reasonable alternative materials from available suppliers or sources. Contractor shall not be required to purchase materials at commercially unreasonable prices, obtain materials from unsafe or unreliable sources, or expose Contractor to unreasonable financial or operational risk in order to perform the services.

Where the specified materials are unavailable, Contractor may, in its reasonable professional judgment, use reasonable alternative materials, products, application methods, or traction materials appropriate for the prevailing conditions. Any additional material costs resulting from such circumstances shall be handled in accordance with the provisions of Section 9, "Deicing Material Availability, Material Shortages and Alternative Materials."

During extraordinary or widespread weather events, Contractor may experience delays in responding to individual properties due to the volume of service requests, road conditions, equipment availability, employee safety, or the need to prioritize emergency and safety-critical locations. Contractor shall make commercially reasonable efforts to provide services as conditions permit but does not guarantee a specific response time, completion time, or service frequency during such events unless expressly agreed to in writing.

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21. SERVICE RECORDS AND DOCUMENTATION

Contractor may maintain records of service, including dates, times, weather conditions, photographs, GPS information, equipment activity, material applications, site observations, communications with Client, directions received from Client, and other operational records.

Such records may be used to document services performed, services declined or delayed at Client's direction, and site conditions and may constitute evidence of Contractor's performance under this Agreement.

22. CUSTOMER NOTIFICATION AND SPECIAL CONDITIONS

Client shall promptly notify Contractor of any unusual hazards, complaints, changes in site conditions, drainage issues, accessibility issues, or special requirements affecting snow and ice management.

Failure by Client to notify Contractor of known conditions shall relieve Contractor from responsibility to the extent such condition contributed to the alleged loss or damage.

23. CLIENT-DIRECTED CANCELLATION, DELAY OR REDUCTION OF SERVICES

Client acknowledges that Contractor's ability to reduce or mitigate snow and ice hazards depends upon Contractor being permitted to perform the services contemplated by this Agreement.

Client shall not direct Contractor to discontinue, delay, reduce, cancel, or refrain from performing contracted snow removal or ice control services except through an authorized representative of Client.

If Client, its property manager, agent, employee, board of directors, association representative, or other authorized representative affirmatively directs Contractor not to perform, to discontinue services, or to delay or reduce services that Contractor otherwise would have performed under this Agreement, Contractor may document the direction, including the date, time, person providing the direction, the services declined, and the weather and site conditions existing at the time.

Contractor may request that Client confirm such direction in writing, including by email, text message, electronic communication, or other written record. If Client declines to provide written confirmation, Contractor may document the direction in its service records.

Client acknowledges that Contractor shall not be responsible, to the extent permitted by applicable law, for conditions, damages, claims, injuries, or losses to the extent they arise from or are contributed to by Client's affirmative direction not to perform, delay in performance, restriction of services, or other interference with Contractor's contracted snow removal or ice control operations.

Client's decision to decline, delay, cancel, or limit snow or ice services shall not constitute a waiver of Contractor's right to payment for services already performed, materials already applied, equipment already mobilized, or other charges otherwise due under this Agreement.

This provision is intended to be consistent with Pennsylvania Act 68 of 2022, Section 1.1 of the Act of July 9, 1970 (P.L. 484, No. 164), as amended, relating to indemnification agreements for snow removal and ice control services. Nothing in this provision shall be interpreted to expand or limit any right, defense, protection, or obligation beyond what is permitted under applicable Pennsylvania law.

24. PENNSYLVANIA ACT 68 OF 2022 — SNOW REMOVAL AND ICE CONTROL SERVICES

The parties acknowledge that this Agreement constitutes a contract for snow removal and/or ice control services within the meaning of Pennsylvania law.

Pursuant to Pennsylvania Act 68 of 2022, Section 1.1, where a receiver affirmatively directs a provider of snow removal or ice control services not to perform such services, any contractual provision requiring the provider to indemnify, hold harmless, or insure the receiver against damages, claims, losses, or expenses arising from bodily injury, property damage, or economic damage caused by or resulting from the receiver's negligence, in whole or in part, is subject to the limitations and requirements established by Pennsylvania law.

The parties intend that this Agreement be interpreted and enforced consistently with Pennsylvania Act 68 of 2022 and all other applicable Pennsylvania law.

For purposes of this Agreement, snow removal or ice control services include, without limitation, plowing, relocation or removal of snow or mixed precipitation, deicing services, and the movement of snow-removal or deicing equipment or materials.

Nothing in this Agreement shall be construed to require Contractor to indemnify, defend, hold harmless, or insure Client for conduct or circumstances to the extent such obligation is prohibited or rendered void by applicable law.

25. INDEMNIFICATION

To the fullest extent permitted by applicable law, Client agrees to indemnify, defend, and hold harmless Jastrem Premium Landscapes, LLC, its owners, officers, employees, agents, subcontractors, and representatives from and against claims, damages, losses, liabilities, costs, and expenses, including reasonable attorneys' fees, arising out of or relating to:

(a) Client's negligence, acts, or omissions;

(b) Client's failure to maintain the property;

(c) Client's failure to disclose known hazards or dangerous conditions;

(d) Client's unauthorized use of areas serviced by Contractor;

(e) conditions created or caused by Client, its employees, agents, tenants, guests, contractors, or other persons under Client's control; or

(f) other conditions outside Contractor's reasonable control,

except to the extent caused by Contractor's negligence or willful misconduct.

Contractor shall remain responsible for damages caused by Contractor's own negligent acts or omissions to the extent determined under applicable law.

The parties expressly intend that this indemnification provision be interpreted and enforced consistently with Pennsylvania law, including Pennsylvania Act 68 of 2022.

26. LIMITATION OF WARRANTY

Except for warranties expressly stated in this Agreement, Contractor makes no express or implied warranty that snow and ice management services will eliminate all snow, ice, slippery conditions, or potential hazards.

Snow and ice management is a risk-reduction service and is not a guarantee against slip-and-fall incidents or other weather-related accidents.

27. INSURANCE

Contractor agrees to maintain commercial general liability insurance covering personal injury and property damage in commercially reasonable amounts.

Contractor currently maintains liability coverage of at least $1,000,000 per occurrence, subject to the terms, conditions, exclusions, and limits of the applicable insurance policies.

Certificates of insurance may be provided upon request.

28. CHANGES AND ADDITIONAL SERVICES

Only services expressly described in the proposal or Agreement are included.

Additional services, including but not limited to snow hauling, extraordinary snow relocation, additional deicing applications, emergency services, services caused by site obstructions, and services outside the contracted scope, shall be considered additional work.

Where reasonably practicable, Contractor shall provide Client with pricing before performing additional work. In emergency or time-sensitive circumstances where prior authorization is impractical, Contractor may perform reasonable services necessary to protect access or property and bill such services accordingly.

29. SUSPENSION OF SERVICES

Contractor reserves the right to suspend services if Client fails to pay amounts when due, fails to provide necessary access, creates unsafe working conditions, or otherwise materially interferes with Contractor's ability to perform the Agreement.

Suspension of services under these circumstances shall not constitute a default by Contractor.

30. ATTORNEYS' FEES AND COLLECTION COSTS

If Contractor is required to retain an attorney or collection service to enforce any provision of this Agreement or collect amounts owed by Client, Client agrees to pay Contractor's reasonable attorneys' fees and collection costs to the extent permitted by applicable law.

31. GOVERNING LAW AND VENUE

This Agreement shall be governed by and interpreted in accordance with the laws of the Commonwealth of Pennsylvania.

To the extent permitted by applicable law, any legal action arising from or relating to this Agreement shall be brought in a court of competent jurisdiction located in Chester County, Pennsylvania.

Contractor reserves all rights and remedies available under Pennsylvania law and applicable federal law.

32. SEVERABILITY

If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid or unenforceable provision shall be enforced to the maximum extent permitted by law.

33. ENTIRE AGREEMENT

This Agreement, together with the proposal, pricing schedule, site plan, snow map, exhibits, and any signed change orders, constitutes the entire agreement between Contractor and Client regarding the services described herein.

Any modification to the Agreement must be in writing and accepted by both parties, except where this Agreement expressly permits Contractor to perform additional services without prior written authorization.

34. NO WAIVER

Failure by Contractor to enforce any provision of this Agreement shall not constitute a waiver of Contractor's right to enforce that provision or any other provision in the future.

35. ELECTRONIC SIGNATURES AND COPIES

Electronic signatures, scanned signatures, electronically transmitted copies, and counterparts of this Agreement shall be considered valid and enforceable to the extent permitted by applicable law.

ACCEPTANCE

The above prices, specifications, scope of work, and conditions are satisfactory and are hereby accepted. Contractor is authorized to perform the work specified in the proposal and Agreement. Payments shall be made according to the terms stated herein.

The items and conditions contained in this Agreement are binding upon the parties and constitute part of the Agreement.

Failure to make any payment when due shall constitute a default. If Jastrem Premium Landscapes, LLC is required to retain an attorney or collection service to collect amounts due, Client agrees to pay reasonable attorneys' fees and collection costs to the extent permitted by applicable law.

By signing below, Client acknowledges that it has read, understands, and agrees to the Snow & Ice Management General Conditions and the scope of services contained in the proposal.

CLIENT:

Company/Association: _____

Authorized Representative: _____

Title: _____

Signature: _____

Date: _____